

favor of staying the state court action in favor of the Federal action.” (See *Caiafa, supra*, at p. 804; see also *Thomson v. Continental Ins. Co.* (1967) 66 Cal.2d 738, 747.)

Mr. Keener’s Request for Judicial Notice is GRANTED as to Exhibit 4. The Court takes judicial notice of Mr. Keener’s Notice of Motion to Stay Federal Proceedings filed in the Federal Action on May 7, 2026, but not for the truth of any matters set forth therein.⁷ The Court agrees with Mr. Keener that the U.S. District Court’s ruling on the pending Federal Motion may well impact the ongoing relevance and applicability of, and/or this Court’s analysis of, the instant Motion. The Court notes that, just as the Federal Action was filed prior to the instant action, the Federal Motion was filed prior to the instant Motion.

Based on the foregoing, the Court finds that the interests of justice, judicial economy, and comity are served by hearing and resolving the instant motion after resolution of the Federal Motion.

.....
Vladimir Privalov v. Villa Zinfandel LLC et al

26CV000675

DEMURRER TO PLAINTIFF’S COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to July 31, 2026, at 8:30 a.m. in Dept. B. The Court has reviewed Defendant’s Notice of Non-Service of Opposition, which asserts that it did not receive any opposition from Plaintiff and requests that any opposition be disregarded. The Court notes that there is an opposition on file, accompanied by a Proof of Service showing timely service on Defendant. Thus, the Court declines to grant Defendant’s request to disregard the Opposition. Rather, Plaintiff is ordered to immediately serve, no later than 4:00 p.m. on July 10, 2026, the file-endorsed copy of his opposing papers. Defendant is granted leave to file and serve, no later than 4:00 p.m. on July 17, 2026, a Reply.

.....
Thomas Kensok et al v. Alison A. Barstad

26CV000834

MOTION TO VACATE STAY OF PROCEEDINGS

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

⁷ The Court defers ruling on the remaining subjects of Mr. Keener’s Request for Judicial Notice until such time as those subjects become relevant. (See *In re Tobacco Cases, II*, JCCP 4042 (2004) 123 Cal.App.4th 617, 626 [“‘Although a court may take judicial notice of a variety of matters [citation], only relevant material may be noticed.’ [Citation.]”].)

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiffs Synergist Law, P.C. and Law Offices Of Thomas Kensok (collectively, “Plaintiffs”) move, pursuant to Business and Professions Code sections 6200-6206 and Code of Civil Procedure section 1281.2,⁸ for an order: (1) Overruling Defendant’s Notice of Stay of Proceedings (Judicial Council Form CM-180) filed on May 4, 2026; (2) Vacating any stay of proceedings imposed or claimed; (3) Finding that Defendant Alison A. Barstad waived her right to mandatory fee arbitration by filing her Answer on May 4, 2026, before service of her Request for Arbitration upon Plaintiffs was perfected on May 8, 2026; and (4) Ordering this action to proceed to determination on the merits.

The matter originally came on for hearing on June 9, 2026. The Court posted a Tentative Ruling the day prior, which continued the matter to allow the moving party to file and serve proof that they provided State Bar-approved notice on the State Bar’s mandated form, which the Court noted was a prerequisite to the requested relief. The Tentative Ruling was adopted as the Order of the Court. (6/9/26 Minute Order.) Plaintiffs timely filed the proof.

Thereafter, on June 18, 2026, Defendant filed a Supplemental Declaration in Support of her Opposition to the present motion (“Def Suppl. Decl.”). Attached thereto is an order, dated June 16, 2026, by the Presiding Arbitrator in the parties’ pending State Bar arbitration matter. The order is on Plaintiffs’ Counsel’s objection to Defendant’s request for arbitration, made on the same grounds as Plaintiffs’ present motion. The Presiding Arbitrator overruled Plaintiffs’ objection, finding, in relevant part:

It is undisputed that [Defendant] timely submitted her Request with the State Bar in response to the Notice [of Client’s Right to Fee Arbitration] on February 8, 2026, which the State Bar deemed ‘filed’ on February 11, 2026. It is also undisputed that [Defendant] filed for fee arbitration well before [Plaintiff] filed their Superior Court lawsuit and before [Defendant] filed her Answer in response to the lawsuit. Also undisputed is the fact that the State Bar, and not [Defendant], served [Defendant’s] Request upon [Plaintiff]. ...

The relevant language of both Section 6201(b) (“failure to so request arbitration prior to the filing of an answer or equivalent response”) and Rule 3.502 (“does either of the following before submitting a Request for Arbitration”) compel a finding that the filing of Client’s Request with the State Bar is sufficient to preserve Client’s rights under Section 6201(b) and Rule 3.502. Service of the request upon Attorneys, which is done by the State Bar and not Client, is not required to preserve Client’s right to fee arbitration. Therefore, the Presiding Arbitrator finds that service of Client’s

⁸ All subsequent statutory references are to the Business & Professions Code unless otherwise specified.

Request by the State Bar upon Attorneys after Client filed her Answer in Superior Court did not waive Client's right to fee arbitration under Section 6201(b) or Rule 3.502.

(Def's Suppl. Decl., Exh. E (Order, 2:24-28, 4:16-24).)

B. RELEVANT BACKGROUND

The Complaint asserts four causes of action against Defendant arising from Defendant's alleged failure to pay Plaintiffs for the services provided in representing Defendant in a prior personal injury action. The Complaint prays *inter alia* for compensatory damages in a sum not less than \$301,158.21 and for third-party costs of \$26,865.62.

The following facts are taken from the Court file, the parties' declaration where sufficiently supported, and the parties' briefs where they appear undisputed:

On January 12, 2026, Plaintiffs served Defendant with a Notice of Client's Right to Fee Arbitration. (Mem., 5:1-2; see Opp., 2:19-22; Declaration of Alison A. Barstad ISO Opposition ("Def's Opp. Decl."), ¶ 6, Exh. A; Declaration of Sami Sedghani, ¶¶ 3-4.)

On March 12, 2026, the State Bar confirmed, via a letter sent to both Plaintiffs' counsel and Defendant, that Defendant's "request for arbitration of a fee dispute with attorney Sami Sedgani has been filed with this office...." (Def's Opp. Decl., ¶ 7, Exh. B.) The State Bar letter also provided a case number to Defendant for the Mandatory Fee Arbitration and indicated that her request for a waiver of the filing fee was received and under consideration, but that the State Bar was unable to take any further action on her request for arbitration until a decision was made on her request for a fee waiver. (*Ibid.*)

On April 10, 2026, Plaintiffs filed and served the Complaint. (See 4/10/26 Complaint; 4/21/26 Proof of Service.)

On May 4, 2026, Defendant filed and served an Answer and a Notice of Stay of Proceedings stating: "This case is stayed...with regard to all parties" based on "Arbitration of attorney fees and costs under Business and Professions Code section 6201." (5/4/26 Notice of Stay of Proceedings, ¶¶ 2(a), 3(d).) Paragraph 3(d) requires "a copy of the client's request for arbitration showing filing and service" to be attached to the Notice. While the Declaration of Alison A. Barstad in Support of the Notice of Stay purports to attach "Correspondence and/or submission relating to the Mandatory Fee Arbitration request" as Exhibit A, Exhibit A thereto is only a form for Defendant's Request for Waiver of the Arbitration Filing Fee, and there is no filing and service of that form shown. (See Declaration of Alison A. Barstad ISO Notice of Stay, Exh. A.)

On May 8, 2026, the State Bar electronically served Plaintiffs with a letter, indicating that "[c]lient's request for arbitration of a fee dispute in the above matter has been filed with this office," and enclosing four documents regarding next steps in the proceeding. (Mem., 5:8-10; Reply Declaration of T Thomas Kensok ("Reply Decl.") at ¶ 2, Exh. 1.)

C. LEGAL STANDARD

Business and Professions Code sections 6200 through 6206, known as the Mandatory Fee Arbitration Act (“MFAA”), establishes a program of fee arbitration that is voluntary for clients but mandatory for attorneys when invoked by the client. (See Rules of State Bar, rule 3.501(A).) Section 6201 prescribes the procedural mechanics.

Section 6201, subdivision (a) requires the attorney to give the client written notice of the right to arbitrate fees under the MFAA prior to or at the time of service of summons. Section 6201, subdivision (b) then describes the client’s path to invoke MFAA arbitration once the attorney has filed a collection court action. It provides, in relevant part:

[T]he client may stay the action or other proceeding by serving and filing a request for arbitration in accordance with the rules established by the board of trustees pursuant to subdivision (a) of Section 6200. The request for arbitration shall be served and filed prior to the filing of an answer in the action or equivalent response in the other proceeding; **failure to so request arbitration prior to the filing of an answer or equivalent response shall be deemed a waiver of the client’s right to arbitration** under the provisions of this article if notice of the client’s right to arbitration was given pursuant to subdivision (a).

(§ 6201, subd. (b). Emphasis added.)

Stated differently, “[a] Client’s right to request or maintain Fee Arbitration is waived if ... the Client receives the State Bar-approved notice regarding a Client’s right to arbitrate Fees but does either of the following **before submitting a Request for Arbitration**: (a) answers or otherwise responds to a complaint filed in court by the attorney; or (b) files a response in another proceeding regarding Fees initiated by the attorney.” (Rules of State Bar, rule 3.502(A)(3).)

Section 6201, subdivision (c) provides that “[u]pon filing and service of the request for arbitration, the [court] action [initiated by the attorney] shall be automatically stayed....” (See also Rules of State Bar, rule 3.511(A).)

D. DISCUSSION

Plaintiffs argue that, because Defendant answered the Complaint before the State Bar served her request for arbitration on Plaintiffs, Defendant waived her right to arbitration. Notably, Plaintiffs do not contend that Defendant failed to timely request arbitration with the State Bar. (See Rules of State Bar, rule 3.502(A) [requiring request for arbitration to be submitted to State Bar “within 30 days of client’s receipt of the State Bar-approved notice regarding a Client’s right to arbitrate Fees”].) Moreover, Plaintiffs do not dispute that they received notice of the State Bar’s March 12, 2026 correspondence, confirming receipt of Plaintiffs’ request for arbitration, prior to filing and serving their own complaint in this matter.

The Court does not find that Defendant waived her right to arbitration under section 6201, subdivision (a) or Rules of State Bar, rule 3.502. More pointedly, the Court does not find that the timing of the State Bar's service of Defendant's timely request for arbitration (confirmation of which request was served on Plaintiffs prior to the filing of their complaint and Defendant's answer) creates a waiver of Defendant's right to arbitration. Rather, making a request with the State Bar for arbitration is sufficient to preserve the client's rights under section 6201, subdivision (b) and rule 3.502. Moreover, the Court finds the Order, dated June 12, 2026, by the Presiding Arbitrator well-reasoned.

As such, the motion to vacate the stay is DENIED.

.....
Shirley Jo Kilgore v. Piner's Nursing Home

26CV001142

PLAINTIFF'S MOTION FOR TRIAL PREFERENCE

APPEARANCE REQUIRED: The Court finds good cause for GRANTING the motion. The parties are directed to appear to set the matter for trial.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Shirley Jo Kilgore moves, pursuant to Code of Civil Procedure section, 36(a) and (e), for an order granting trial preference and setting trial no later than 120 days from the date of hearing on this motion.

"A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation." (Code Civ. Proc. §36, subd. (a).) "An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party." (Code Civ. Proc., § 36.5.)

The Court finds that Ms. Kilgore is over 70 years of age. While Defendant correctly objects that Plaintiff's counsel's declaration is insufficient to support this finding, Defendant